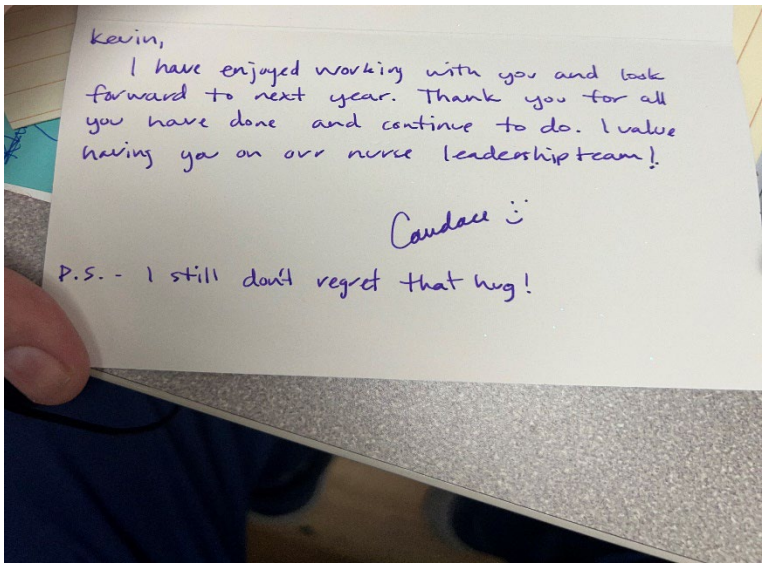
I have filed a grievance to my Performance Management Appraisal as part of the Federal Performance Management Appraisal Program (PMAP). For performance appraisal grievances, the official who gave final approval to the summary rating is the Stage 1 Official, this was Candace Lee as stated below I am not confident that she should be reviewing my grievance. The plan as written does not meet the Office of Personnel Management (OPM) standards as the Administrative Elements are not rated additionally, there is sufficient data that Candace Lee, Jason White, and Brandi Benjamin all agreed I met the standards for an AE (4) or AO (5) rating is several categories. There is a definite clear and prevailing bias and I do not appreciate the threat by Candace Lee that if I grieve my PMAP rating that she would give me a PA (2). I feel that this is sexual harassment and that Candace Lee created a Quid-Pro-Quo situation ever since I rebuffed her and objected to the physical/sexual conduct when she started hugging me in my office back in November 2022. Then giving me a card and also verbally telling me "I still don't regret that hug!"


Kevin,
I have enjoyed working with you and look forward to next year. Thank you for all you have done and continue to do. I value having you on our nurse leadership team!
Candace :)
P.S. - I still don't regret that hug!

Now she is refusing the changing of my PMAP rating or fixing the errors with my PMAP and threatening that if I grieve or file a complaint regarding the biased, improper and unfairly rated performance evaluation she would give me a lower rating of a PA(2) when I supervise three departments with Primary Care, Behavioral Health and Employee Health which had to basically be set up from scratch when it was separated from Infection Control (None of this work is in my Position Description or included in my PMAP rating. All the feedback given to me throughout the year was all positive regarding the area wide and hospital wide changes I have worked on and/or got implemented, how I began fixing the Clinical Care Coordinator (CCC) role and role clarity for all clinics and was volunteered to teach all CCC's the CCTM curriculum and got the RQI system implemented across the Phoenix Area. The "Rater" Jason White did not provide any meaningful feedback in writing or in person and did not provide an opportunity for review and comment. Very difficult for a person with no ambulatory care experience to rate and manage performance of individual over ambulatory clinics that he by his own admission did not understand. I was never from anyone in leadership even provided an orientation checklist or an orientation from leadership. No meeting was held and final copy of my PMAP was submitted to Phoenix Area Office without providing for the required 2 days for review nor was I provided

ability or opportunity to respond in writing a blatant violation of my due process rights. The PMAP provided does not include rating for the Critical Elements nor does it specify the requirements to be met for each department supervised. No orientation checklist was ever provided for my current position in Primary Care much less Employee Health or Behavioral Health. Nothing provided verbally or otherwise that outlined requirements or expectations for any of my three departments. When having one to ones all that was communicated was the great job I was doing and to keep it up. By law, forced distribution of employees among levels of performance, or grading on the curve is prohibited as is using one area to judge all elements which is what was done on this PMAP. Employees are required to be assessed against documented standards of performance and they must be sufficiently specific to provide a firm benchmark toward employee performance and not be completely subjective as this rating is and invalidates the performance standard due to not providing clear standards that are measured on a whim based on a personal judgement as done here and creating a pass/fail. A backward absolute standard was created. HHS definition of **Performance** is an employee's accomplishment of assigned work as specified, and by rater's own admission ALL were accomplished. Additionally, I held two separate positions in 2022 and was only rated on one position. From January 1, 2022 through March 27, 2022 I was a Nurse Educator. From March 28, 2022 as SCN over Primary Care then was told a month or two later "Oh by the way you are over behavioral health nursing staff", then in June 2022 I was told "by the way you are now over employee health and since we separated it from Infection Prevention you have no policies or procedures so you have to write all of them" then turn around and say I have to do Infection Prevention work, causing extreme undue stress as not one individual in the nursing up line attempted to assist or even ensure I knew all the requirements of Employee Health or the regulatory duties and responsibilities of the Department. This was a blatant bait and switch tactic since this should have all been part of the position description and included in the listing since come to learn that that Employee Health was realigned March 14, 2023 a full fourteen (14) days prior to me starting my position.

Digitally signed by Kevin D. Turnage -S
DN: c=US, o=U.S. Government, ou=HHS, ou=IHS, ou=People, 0.9.2342.19200300.100.1.1=2002354158, cn=Kevin D. Turnage -S
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